EXHIBIT 5

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

KATHLEEN MOLLER

vs. NO: 24-0228-WBV-DPC

MARTIAN SALES, INC.;
JOPEN, LLC, a Texas
limited Liability company;
JOHNSON FOODS, LLC, a Wyoming
limited liability company;
CAG Holdings, LLC, a Wyoming
limited liability company;
RMH HOLDINGS, INC., a Wyoming
corporation, et al.

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The remote video deposition of
MARK REILLY, taken in his individual
capacity, via Zoom web conference
on October 8, 2025, commencing at
approximately 1:53 p.m. EST

Job No. MDLG7641076-2

Q Do you think that --
I'm trying to think of putting it a different way.
-- that a manufacturer, again, in the business of putting out a product for human consumption, should adopt and communicate instructions for the safe use of that product?
A I guess. Yes.
Q Including warnings for the safe use of that product.
A Yes.
Q And that it should communicate to consumers any significant health risks associated with the use of the product.
A Yes.
Q And that it should have labels for its products that are not deceptive or misleading.
A Yes.
Q And if there's a risk of death for selling the product, you agree that one selling the product for consumption should notify the consumer?
A Yes.
Q Are you aware of a US -- USFDA communication in the last month or so warning --

Q No. No, you don't.
It says here "the FDA has determined that kratom, when added to food, is an unsafe food additive within the meaning of Section 409. Food containing an unsafe food additive such as kratom is adulterated" under this section that they cite here. You understand that?
A I do.
Q Okay. Nonetheless, you -- your company continues to sell this product on the open market for human consumption.
A Yes.
Q It concludes by saying, "Therefore, kratom is not lawfully marketed in the United States as a drug product, a dietary supplement, or a food additive in conventional food." You -- you understand that?
A Yes.
Q Okay. This came out on September 25th, 2025. This is the first time you're seeing this?
A Yes.
Q Okay. I'm going to set -- you know, I'm going to attach this notice or whatever it's called as an Exhibit Number 1 to this deposition.
(DEPOSITION EXHIBIT NUMBER 1